"Even if we assume it was an illegal construction, it was not appropriate to demolish it on a holiday. A breathing space must have been given to approach the court. It's against the rule of law," says Justice Mathur. Ishtiyaq's son Iftikhar, who ran a tailoring shop in the demolished building, said they had not been served any notice by the KDA. They had no clue which part of the building was illegal and why.

Section 10 of the Uttar Pradesh (Regulation of Building Operations) Act, 1958, states that the prescribed authority may order the owner of any illegal construction to demolish the building himself within a period of not more than two months. Only upon the expiry of this period may the authority carry out the demolition by itself. Secondly, under this section, no such order can be made without giving the owner an opportunity of being heard. Under Section 15, the owner of the building against whom the order under Section 10 has been made may appeal before the controlling authority under the Act within 30 days of the order. In that case, the order is stayed, pending the appellate authority's decision.

Similarly, under Section 27 of the Uttar Pradesh Urban Planning and Development Act, 1973, the vice-chairman of the relevant development authority will order the owner of an unauthorised construction to remove it himself within a period of 15 to 40 days. Only upon the expiry of this period may the vice-chairman direct the demolition. It also allows the owner to appeal to the chairman of the development authority within 30 days of the order, with the provision that he may stay the order while the appeal against it is pending.

A PDA official says that the authority got information about the illegal construction in Javed's house on May 4. Javed was sent a notice on May 10 and told to present his side on May 24. On May 24, a show cause notice was issued to him under section 27(1) of the 1973 Act. "The notice was pasted on the house as the owner refused to take it," says the official. As neither Javed nor his lawyer turned up and no document was presented, the demolition order was issued on May 25. On the dispute over ownership of the house, PDA vice chairman Arvind Kumar Chauhan says that ownership of a building doesn't matter if the property itself is deemed illegal.

Javed and a team of five lawyers have now appealed in the Allahabad HC against the demolition. A set of PILs are also pending in the Supreme Court, seeking directive against arbitrary demolitions by civic authorities in various states. In 2014, the National Human Rights Commission had ordered the Delhi government to pay compensation of Rs 2 lakh to the owner of a building that had been demolished by the South Delhi Municipal Corporation without prior notice. "Affected parties should have moved the writ courts. But when notices come with the bulldozers, there is hardly any time to react. Besides, some affected parties are from the lower strata of society who have little access to legal redress. That's why there has to be some judicial oversight while conducting these coercive processes," says Devdatt Kamat, senior advocate in the Supreme Court.



"Even if it was an illegal construction, it was not appropriate to demolish it on a holiday. Time should have been given to approach the court"

JUSTICE GOVIND MATHUR
Former Chief Justice, Allahabad High Court

AGAINST POLITICAL RIVALS

While law will take its own course, critics point out how police forces are leading these demolitions, though their presence is required only to help civic authorities maintain law and order. According to several reports, the Kanpur police commissioner has sent a list of more than 100 buildings to the KDA, asking it to probe their status and mark out any illegalities to the structures. After that, the administration may initiate action against illegal buildings.

Besides, the government is also using the bulldozer against political rivals. In April, a petrol pump owned by the Samajwadi Party MLA Shehjil Islam Ansari was demolished in Bareilly. According to the Bareilly Development Authority (BDA), it was constructed without the map of the structure being approved. Ansari was served a notice to put the construction on hold in 2019 when it began. After several hearings, in March 2021, the demolition order was passed. While action was taken as per norms, the timing smacked of political intent—within days after Ansari had allegedly made an objectionable remark against CM Adityanath.

A group of former judges of the Supreme Court, high courts and senior lawyers have reportedly written to the Chief Justice of India, urging him to take suo moto cognizance of the recent incidents of alleged "repression" by the UP government. While the government may have covered its acts legally on technical grounds, as most legal experts concur, it's also important that principles of natural justice are read into penal provisions. For now, the UP government and some others are using the loopholes in the laws to play judge, jury and executioner. ■

– with Ashish Mishra and Prashant Srivastav